

CiteCase

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1. Bhadra International (India) Pvt. Ltd. vs Airports Authority of India 2026 INSC 6 - Arbitration - Ineligibility

5 Jan 2026

Arbitration and Conciliation Act 1996- Section 12(5)- The ineligibility of an arbitrator can be waived only by an express agreement in writing. The requirement of the waiver to be made expressly in the form of agreement in writing ensures that parties are not divested of their right to object inadvertently or by procedural happenstance. (Para 89-90) A notice invoking the arbitration clause under Section 21, a procedural order, submission of statement of claim, the filing an application seeking interim relief, or a reply to an application under Section 33 cannot be countenanced to mean “an express agreement in writing” within the meaning of the proviso to sub-section (5) of Section 12. (Para 96) The arbitrator upon entering reference and at the very first hearing, to ensure from the parties that they are willing to participate in the proceedings and to insist upon a written agreement waiving the requirement of Section 12(5) (Para 121)

Arbitration and Conciliation Act 1996- Section 12(5)- A challenge to an arbitrator’s ineligibility could be raised at any stage because an award passed in such circumstance is non-est, i.e., it carries no enforceability or recognition in law - When an arbitrator is found to be ineligible by virtue of Section 12(5) read with the Seventh Schedule, his mandate is automatically terminated. In such circumstance, an aggrieved party may approach the court under Section 14 read with Section 15 for appointment of a substitute arbitrator. Whereas, when an award has been passed by such an arbitrator, an aggrieved party may approach the court under Section 34 for setting aside the award. (Para 123-iv)

Arbitration and Conciliation Act 1996- Section 18 - The principle of ‘equal treatment of the parties’ means that the parties must have the possibility of participating in the constitution of the arbitral tribunal on equal terms -Equal participation of the parties in the process of appointment of arbitrators entails that the contracting parties have an equal say in the constitution of the arbitral tribunal. Such participation eliminates the likelihood of challenges to the arbitrator at a later stage. It is needless to say that independence and impartiality in arbitral proceedings would be served only when the parties participate equally at all stages - The principle of party autonomy does not obliterate the principle of equal treatment of the parties, either in the procedure for appointment of arbitrators or in the arbitral proceedings. The exercise of party autonomy has to be in consonance with the principles of equal treatment of parties, which impliedly include the independence and impartiality of arbitrators. (Para 32-39)

Arbitration Law - In the absence of any contrary stipulation in the agreement, arbitral proceedings commence when a notice invoking arbitration is received by the respondent. (Para 49)

Arbitration Act - Section 21 - The notice under Section 21 is an expression to set the arbitration agreement into motion upon arising of disputes between the parties. The section states that the date of commencement of arbitration would be the date on which the recipient receives the notice from the claimant that the dispute be referred to arbitration . The notice acts as a communication that the sender is aggrieved and seeks to invoke the arbitration agreement. It does not, by itself, operate as consent to any appointment to be made in the future. (Para 70)

 [Download PDF: Bhadra International \(India\) Pvt. Ltd. vs Airports Authority of India 2026 INSC 6 - Arbitration - Ineligibility](#)

2. Bhagheeratha Engineering Ltd vs State of Kerala 2026 INSC 4 - Arbitration Act

5 Jan 2026

Arbitration and Conciliation Act - Section 21- The object is only for the purpose of commencement of arbitral proceedings is also well settled. Section 21 is concerned only with determining the commencement of the dispute for the purpose of reckoning limitation. There is no mandatory prerequisite for issuance of a Section 21 notice prior to the commencement of Arbitration. Issuance of a Section 21 notice may come to the aid of parties and the arbitrator in determining the limitation for the claim. Failure to issue a Section 21 notice would not be fatal to a party in Arbitration if the claim is otherwise valid and the disputes arbitrable. (Para 16)

Arbitration and Conciliation Act - Section 23 - Once the Arbitral Tribunal is constituted claims, defence and, counter claims are filed. Party which normally files the claim first is, for convenience, referred to as the 'claimant' and the party which responds is called the Page 40 of 41 'respondent'. The said respondent is also along with the defence statement entitled to file its counter claim. Hence, to contend that the appellant cannot be referred to as a claimant because no notice under Section 21 has been issued is completely untenable. (Para 20)

Arbitration and Conciliation Act - Section 7- Arbitration Agreement - If an arbitration agreement provides that all disputes between the parties relating to the contract shall be referred to arbitration, the reference contemplated is the act of parties to the arbitration agreement. (Para 18)

 [Download PDF: Bhagheeratha Engineering Ltd vs State of Kerala 2026 INSC 4 - Arbitration Act](#)

3. Rajia Begum v. Barnali Mukherjee, 2026 INSC 106 - Arbitration Agreement - Fraud - Art. 227 Petition

2 Feb 2026

Arbitration and Conciliation Act 1996 - Section 7,8,11- when an allegation of fraud is made with regard to arbitration agreement itself, such a dispute is generally recognised as a dispute, which is in the realm of nonarbitrability and the court will examine it, as a jurisdictional issue only to enquire whether the dispute has become nonarbitrable due to one or the other reason. (Para 15) A party may be bound by the arbitral process only if it is first shown, even at a prima facie level, that such a party had agreed to submit disputes to arbitration. Where the arbitration agreement itself is alleged to be forged

or fabricated, the disputes ceases to be merely contractual and strikes at the very root of arbitral jurisdiction. (Para 20)

Arbitration and Conciliation Act 1996 - Section 8,11 - When the existence of the arbitration agreement itself is in serious dispute and requires adjudication, appointment of an arbitrator would be premature and legally impermissible. (Para 23)

Constitution of India - Article 227 - Arbitration - The High Court, while exercising jurisdiction under Article 227 of the Constitution, was not justified in dislodging the concurrent findings and directing reference of the dispute to arbitration, particularly when the very existence of the arbitration agreement was under serious doubt - The supervisory jurisdiction of the High Court under Article 227 of the Constitution is not an appellate jurisdiction in disguise, and it does not permit reappreciation of evidence. (Para 22)

 [Download PDF: Rajia Begum v. Barnali Mukherjee, 2026 INSC 106 - Arbitration Agreement - Fraud - Art. 227 Petition](#)

4. Maharashtra State Electricity Distribution Company Limited (MSEDCL) v. R Z Malpani, 2026 INSC 342 - Arbitration Agreement - Letter of Intent

10 Apr 2026

Arbitration and Conciliation Act 1996 - Section 11 - The scope of inquiry at the stage of Section 11 is extremely limited and only pertains to an examination about prima facie existence of an arbitration agreement. Judicial non-interference in the arbitration process is the sacrosanct principle which guides alternative dispute resolution and Courts must be highly circumspect in interfering at the referral stage, especially since there is no appeal available in the 1996 Act against an order under Section 11. The Arbitral Tribunal, in exercise of its jurisdiction under Section 16 must be left to decide on its jurisdiction. The Courts should follow the principle of 'When in doubt, do refer' and lean towards referring matters to arbitration when the arbitration agreement is prima facie existent. However, it is only in the rarest of rare cases where even on a prima facie view, without going into disputed facts between the parties, there appears to be no existence of arbitration agreement between the parties, the Court can reject the application for appointment of an arbitrator and reference of the parties to arbitration. (Para 42)

Arbitration and Conciliation Act 1996 - Section 7- Letter of intent - A letter of intent does not, in and of itself, create a legal relationship or contractual obligations until there is a clear, unambiguous final acceptance by the parties. It is an expression of one party's intent to enter into a contract with the other party in the forthcoming future. When the intent of the parties can be evinced from the letter of intent or the tender specifications and it is clear that the letter of intent is to be followed by a final award or a concluded agreement, it cannot be said that the letter of intent itself binds the parties to the terms of the tender. Contractual obligations cannot be foisted upon a party without a clear indication of its intent to enter into a binding concluded contract. Therefore, what needs to be distinguished is whether the intent of the parties is to make a 'promise' or a 'promise to make a promise' - A tender is essentially

in the nature of an 'invitation to offer' and submission of a bid by the tenderer is an 'offer'. By means of a letter of intent, however, it must be examined by the Court whether the party extending the letter of intent is in consensus ad idem with the other party and intends to create a conclusive and binding agreement. (Para 31) [**Context:** The Supreme Court held that the Letter of Intent (LOI) issued by MSEDCL, read with the tender documents, did not create a concluded contract or a binding arbitration agreement under Section 7 of the Arbitration and Conciliation Act, 1996. It found that the LOI was only a conditional step towards a future work order and formal agreement, and that a mere general reference to the tender conditions was insufficient to incorporate the arbitration clause, especially when no work order was issued and the contract was never acted upon.]

 [Download PDF: Maharashtra State Electricity Distribution Company Limited \(MSEDCL\) v. R Z Malpani, Arbitration Letter of 2026 INSC 342 - Agreement - Intent](#)

5. J&K Economic Reconstruction Agency v. Rash Builders India Private Limited 2026 INSC 368 Arbitration - Seat and Venue

16 Apr 2026

Arbitration and Conciliation Act 1996 - Principles governing the distinction between the seat and venue of the arbitration, and the jurisdictional consequences that follow- (i) The seat of arbitration constitutes the juridical home or legal place of arbitration. It determines the curial law governing the arbitral process and identifies the Court having supervisory control over the arbitration. (ii) Once the seat is designated by agreement of the parties, the courts of that place alone have exclusive jurisdiction to entertain all proceedings arising out of the arbitration, including challenges to the award. The designation of the seat operates akin to an exclusive jurisdiction clause, excluding all other courts – even those where the cause of action may have arisen. (iii) The venue is merely a geographical location chosen for convenience for holding hearings, examination of witnesses, or meetings of the arbitral tribunal. It does not confer jurisdiction and does not, by itself, alter or determine the seat. The arbitral tribunal is free to conduct proceedings at locations different from the seat without affecting the juridical seat. (iv) The mere fact that arbitral proceedings are conducted or the award is rendered at a particular place does not confer jurisdiction on courts of that place if it is different from the designated seat. The seat remains fixed unless expressly altered by agreement of the parties. v) Where the seat is not expressly designated, courts determine it by applying: (a) the closest and most intimate connection test, identifying the place most closely connected with the arbitration (based on the Naviera Amazonica principle); and (b) in appropriate cases, construing the venue as the seat where the agreement and surrounding circumstances indicate such intention (as reflected in the Shashoua principle⁹). (vi) The intention of the parties, as discerned from the arbitration agreement and surrounding circumstances, is the paramount factor in determining the seat. Once such intention is expressed—either expressly or by necessary implication—it must be given full effect by Courts. [Context: In the case, arbitrator by an order had fixed the seat of arbitration as Srinagar and venue of arbitration as New Delh- However, arbitral award records New Delhi as place of arbitration - SC held: The seat of arbitration is governed by the agreement of the parties and not by any stray recital in the award. Once the seat of arbitration is fixed, it remains immutable unless altered by an express agreement. In the absence of any agreement, the designation of Srinagar as seat of the arbitration continues to hold the field] (Para 18-19)

 [Download PDF: J&K Economic Reconstruction Agency v. Rash Builders India Private Limited 2026 INSC 368.](#) [Arbitration and Venue](#) - [Seat](#)

6. Nagreeka Indcon Products Pvt. Ltd. v. Cargocare Logistics (India) Pvt. Ltd., 2026 INSC 384 - Arbitration Agreement - Can

18 Apr 2026

Arbitration and Conciliation Act 1996 - Section 7 - The words used in the agreement should disclose a determination and obligation to go for arbitration and not only provide for the possibility of going to arbitration. When the word provides only a possibility, the same does not constitute a valid arbitration agreement. (Para 12) In this case, the contractual clause read thus: Any difference of opinion or dispute thereunder can be settled by arbitration in India or a place mutually agreed with each party appointing an arbitrator - SC held - The clause indicates merely the future possibility of referring disputes to arbitration and as such, it cannot be said to be a binding arbitration agreement - The possibility of arbitration being used to settle disputes is open however, for the disputes to be settled by arbitration, further agreement between the parties would be required and needless to add, such an agreement can only come into existence when both parties agree to the same. (Para 13)

 [Download PDF: Nagreeka Indcon Products Pvt. Ltd. v. Cargocare Logistics \(India\) Pvt. Ltd., 2026 INSC 384 -](#) [Arbitration Agreement - Can](#)

7. Home Care Retails Marts Pvt. Ltd. v. Haresh N. Sanghavi 2026 INSC 415 - S.9 Arbitration Act- Unsuccessful Party

24 Apr 2026

Arbitration and Conciliation Act 1996 - Section 9 - Any party to an arbitration agreement, including an unsuccessful party in arbitration, may invoke Section 9 of the Act at the post-award stage. However, the Courts would be well advised to exercise care, caution and circumspection while dealing with a Section 9 application filed by an unsuccessful party in arbitration. (Para 62) The threshold for grant of interim relief will be higher in the case of an unsuccessful party in arbitration seeking such relief. In rare and compelling cases, permitting the unsuccessful party to invoke Section 9 of the Act would prevent irreparable prejudice and preserve the efficacy of the challenge proceedings. However, the rights of such a party cannot be curtailed merely on the apprehension of possible misuse of a statutory provision. (Para 60)

Arbitration and Conciliation Act 1996 - Section 2(h), 9 - Section 2(h) nor Section 9 of the Act draws any distinction between a successful and an unsuccessful party in arbitration proceedings. The meaning of the expression 'a party' cannot be contextually modulated or varied depending upon the outcome of the arbitral proceedings. (Para 29-33)

Arbitration and Conciliation Act 1996 - Section 9- The grant of interim relief under Section 9 to be guided by well-established principles, namely, the existence of a prima facie case, balance of convenience, and likelihood of irreparable harm or injury

Arbitration and Conciliation Act 1996 - Section 34,37- An unsuccessful party cannot secure protection of its claim under Section 34 or Section 36. (Para 43)

[!\[\]\(c3d993ca47bfe2a953c700506ce31fa0_img.jpg\) Download PDF: Home Care Retails Marts Pvt. Ltd. v. Haresh N. Sanghavi 2026 INSC 415 - S.9](#) [Act-
Arbitration
Unsuccessful
Party](#)

8. Hirani Developers v. Nehru Nagar Samruddhi Co-operative Housing Society Ltd. 2026 INSC 484 - Arbitration Agreement - Incorporation By Reference

13 May 2026

Arbitration and Conciliation Act, 1996 - Section 7 - In arbitration clause in another document would get incorporated into the later contract by reference, if the contract contains a clear reference to the document containing the arbitration clause and such reference to the other document clearly indicates the intention to incorporate the arbitration clause into the contract and such arbitration clause is capable of application to the disputes under the contract and is not repugnant to any term of that contract. [**Context:** In this case, Supreme Court held that Clause 14 of the Permanent Alternate Accommodation Agreements clearly incorporated all terms and clauses of the earlier Development Agreement, thereby importing its arbitration clause (Clause 36) into the later agreements under Section 7(5) of the Arbitration Act. The Court found that this was not a mere reference but a full “body and soul” incorporation of the Development Agreement]

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Arbitration
Incorporation By
Reference](#)

9. Madhya Pradesh Road Development Corporation Ltd v. Jabalpur Corridor Pvt Ltd 2026 INSC 590 – Ss.34,37 Arbitration Act

1 Jun 2026

Arbitration - Arbitration in India has not failed, however Courts sometimes have failed arbitration in India. Even the Government’s role cannot be ignored. A single doubtful precedent in the arbitration field has the potential to cast a shadow on its viability in India and its impact on the ease of doing business in India. Judicial interference in alternative dispute resolution has often been a cure without a

disease in India. In this context, it is high time that judges realize that certainty, uniformity and finality are also cherished values. (Para 1) Arbitral awards and processes have to be treated with open judicial mind. There remains a hesitancy still for some Courts to accept alternative dispute resolution mechanisms. This hesitance is rooted in suspicion of the process which often leads to re-examination of evidence and re-interpretation of contractual terms at the stage of Section 34 and Section 37. This Court has to ensure that arbitration is accepted as a norm, and its true essence, which is party autonomy and equality is realized. Finality and uniformity in judicial processes associated with or arising out of arbitration. (Para 74)

Arbitration and Conciliation Act, 1996 – Section 34 — Section 34 does not provide for an appeal against the award of the arbitral tribunal but only for an application to seek “setting aside” of the award, and the jurisdiction of the Court under Section 34 is narrowly circumscribed and confined to the specific grounds enumerated therein, without permitting the Court to assume the role of an appellate forum to correct errors of fact, reconsider costs, or engage in a review of the merits. (Paras 31–33, 40) Once the arbitral tribunal has applied its mind, appreciated the evidence on record, and interpreted the terms of the contract to take a certain view, such view would ordinarily be accepted and ought not to be interfered with unless palpably erroneous and falling within the limited grounds of Section 34; even if two views are possible, it is beyond the scope of Section 34 for the Court to reappraise the evidence to take a different view. (Paras 33–35)

Arbitration and Conciliation Act, 1996 – Section 34, 37 —The appellate Court under Section 37 does not sit as a court of appeal on the merits of the arbitral award; its role is confined to examining whether the Court under Section 34 has acted within the limits prescribed by law. Interference is permissible only where the Section 34 Court has exceeded its jurisdiction or failed to exercise it within the confines of Section 34, and not merely because another view of the facts or interpretation of the contract may appear preferable. Courts ordinarily must give requisite deference to finality of arbitral awards unless it is palpably clear that the award is perverse and unreasonable. The arbitral tribunal remains the final authority on appreciation of evidence, and concurrent findings under Sections 34 and 37 are entitled to great deference. (Para 40)

Arbitration and Conciliation Act, 1996 – Sections 34(2)(b)(i), 34(2)(b)(ii) and 16; Madhya Pradesh Madhyastham Adhikaran Adhiniyam, 1983 – Sections 7 and 20; Law of Finality and Issue Estoppel — Once a jurisdictional issue concerning applicability of the Adhiniyam versus the 1996 Act has been specifically raised (including under Sections 14 and 16), adjudicated through the hierarchy of courts, and culminated in dismissal of special leave and review petitions, that question attains finality inter se the parties and cannot be resurrected in collateral proceedings under the guise of public policy or subsequent legal developments, nor can an award be annulled solely on lack of jurisdiction where objections were not raised at the appropriate stage or were decided as per then prevailing law. (Paras 45–57, 62–66) — Where an objection to the jurisdiction of the arbitral tribunal (e.g. based on applicability of the Adhiniyam) is raised only after filing the statement of defence, contrary to Section 16(2), such conduct attracts statutory waiver under Section 4, and if the objection is thereafter decided as per the law prevailing prior to LG Chaudhary case, the resultant award cannot later be set aside merely on that ground. (Paras 59–66)

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10. Regenta Hotels Private Limited v. Hotel Grand Centre Point - 2026 INSC 32 - Ss.9,21 Arbitration Act

7 Jan 2026

Arbitration and Conciliation Act 1996 - Section 9,11,21- The commencement of arbitral proceedings is a statutory event defined exclusively under Section 21, wherein the respondent's receipt of a request to refer the dispute to arbitration sets the arbitral proceedings in motion and no judicial application i.e. whether under Section 9 or Section 11 petition, constitutes commencement. Therefore, the statutory consequences tied to commencement, including the mandate under Section 9(2), must be assessed solely with reference to the date of receipt of request invoking arbitration under Section 21. (Para 23) **Arbitration (Proceedings Before the Courts) Rules, 2001-Rule 9(4)** - Section 9 does not provide for the consequences of non-compliance with its mandate of commencing arbitral proceedings within ninety days, however, the said vacuum stands statutorily filled through Rule 9(4) - The expression "initiated" has necessarily to be read as "commenced" within the meaning of Section 21 - Upon failure to commence arbitral proceedings within three months, the period stipulated under Rule 9(4) attracts the consequence as provided therein, namely, the interim order shall stand vacated automatically. (Para 27)

Arbitration and Conciliation Act 1996 - Section 9- In absence of any other provision providing for the date of commencement of the arbitral proceedings, Section 21 is to be construed to apply to all the provisions of the Act unless specifically provided as not applicable. The only exception that is carved out in Section 21 pertains to the arbitral agreement itself, providing that unless otherwise agreed by the parties, the date of commencement of arbitral proceedings must be from the date when notice or request invoking arbitration is received by the respondent. (Para 24)

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11. Ankhim Holdings Pvt. Ltd. & Anr. v. Zaveri Construction Pvt. Ltd. 2026 INSC 137 - S.15 Arbitration Act

9 Feb 2026

Arbitration and Conciliation Act, 1996 - Section 15(2) - it would be impermissible for a court acting under Section 15(2) to adopt a procedure whereby it exercises jurisdiction barred to it by the Act. (Para 41) High Court is not empowered to nullify orders which it had no jurisdiction to consider. (Para 42) Where the Act provides procedures for assailing orders, or prohibits such orders of a Tribunal from being assailed, then no alternate procedure can be adopted by a court whose jurisdiction derives from a provision of the Act itself. (Para 40) **[Context:** SC held that while substituting an arbitrator under Section 15(2), the Bombay High Court exceeded its limited jurisdiction by declaring arbitral proceedings conducted between 17.03.2022 and 25.08.2022 as a nullity on the ground of moratorium under Section 14 of the IBC.]

Arbitration and Conciliation Act, 1996 - Section 15 - Section 15(3) provides the course of action after the arbitrator has been replaced under sub-section (2). The essential ingredients of the provision are thus:- i. Any hearing previously held may be repeated; ii. The repetition of the hearing is at the discretion of the arbitral tribunal; iii. However, such repetition of the hearing is subject to the agreement between the parties; If the parties agree for repetition of hearing, the term “may” transforms into “shall”. Whereas, if the parties agree for non-repetition of hearing, the term “may” transforms into “shall not”. In case the parties fail to arrive at a conclusion, the arbitral tribunal would decide whether the hearing already conducted before his substitution would be repeated - The parties can come to an agreement on the question of re-hearing either prior to the stage of substitution being reached or after the arbitrator has been substituted. (Para 31)

Arbitration and Conciliation Act, 1996 - Section 15 - Under Section 15(2), the appointment of the substitute Arbitrator must be in accordance with the original agreement or provision applicable to the appointment of the Arbitrator at the initial stage. (Para 32)

Arbitration and Conciliation Act, 1996 - Section 11- It affords the Court with a very limited scope essentially requiring the Court only to make prima facie finding that an arbitration agreement exists. (Para 3)

Arbitration and Conciliation Act, 1996 - Section 37- Section 37 provides for appeals against orders under Section 17 and also against orders accepting pleas under Section 16, though orders rejecting Section 16 applications are not subject to judicial interference under the Act. (Para 40)

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12. V.K. John v. S. Mukanchand Bothra and HUF (D) 2026 INSC 393. S.34 Arbitration Act - LRs Of Deceased Party

20 Apr 2026

Arbitration and Conciliation Act 1996 - Section 34 - When an award has been made enforceable against the legal representatives of a deceased party under the Act, the right to challenge such an award, which is available under the Act to the parties, also has to naturally flow to the said legal representatives - Denying a legal representative the right to challenge an award under Section 34, would defeat the very object of the Arbitration Act, and its purpose as a self-contained complete Code of dispute resolution - Legal representatives of a deceased party cannot be made remediless under the statute on one hand, and on the other hand being made liable to fulfill the award. (Para 19-20)

Arbitration and Conciliation Act 1996 - The scheme of the Arbitration Act, does not envision arbitration proceedings to cease with the death of a party. Section 35 of the Arbitration Act, extends the finality of an arbitral award not only to parties to the award, but also to ‘parties claiming under them’. (Para 17)

 [Download PDF: V.K. John v. S. Mukanchand Bothra and HUF \(D\) 2026 INSC 393. S.34](#) [Arbitration Act - LRs Of Deceased Party](#)

13. Motilal Oswal Financial Service Limited vs Santosh Cordeiro 2026 INSC 5 - Arbitration Act

5 Jan 2026

Arbitration and Conciliation Act 1996 - Section 11 - In a proceeding under Section 11, the Court is to confine the examination to the existence of an Arbitration Agreement - The jurisdiction is only to inspect or scrutinize the dealings between the parties for determination about the existence of an Arbitration Agreement and not to launch a laborious or a contested inquiry. (Para 15-17)

Arbitration and Conciliation Act 1996 - Creation of a specific forum as a substitute for Civil Court or specifying the Civil Court may not be enough to accept the inference of implicit non-arbitrability. Conferment of jurisdiction on a specific court or creation of a public forum though eminently significant, may not be the decisive test to answer and decide whether arbitrability is impliedly barred. (Para 21)

Presidency Small Cause Courts Act, 1882 -Section 41- Section 41 is a provision conferring jurisdiction on the Small Causes Court for certain types of disputes and cannot be interpreted to mean that ex proprio vigore (by its own force), it neutralizes arbitration clauses in agreements (Para 21)

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14. Municipal Corporation of Greater Mumbai v. R.V. Anderson Associates Limited 2026 INSC 228 - S.16 Arbitration - Statutory Waiver - Conduct Of Parties

11 Mar 2026

Arbitration and Conciliation Act 1996 - Section 4,16,34,37 - Statutory waiver under Section 4 would attract in case an objection under Section 16 challenging the composition of tribunal and lack of jurisdiction is not filed prior to the time-limit as prescribed under Section 16(2) -Statutory waiver under Section 4 does not attract when a timely challenge to the jurisdiction of the Arbitral Tribunal has been made - However, upon making such a challenge by a party, while adjudicating the application under Section 16 on merits by the Arbitral Tribunal, or examining its rejection at the stage of Section 34 followed by Section 37, the prior conduct of the party certainly becomes a relevant consideration to decipher its understanding of the contractual scheme. This is especially so, when the jurisdictional challenge due to improper composition of the Arbitral Tribunal is made on the ground of non-compliance of the arbitration clause. In such a case, the conduct of the party right from the stage of

invocation of arbitration becomes a relevant consideration. While examining the alleged departure from the contractual scheme, acquiescence by the party in its conduct, its actions pursuant to the contractual terms and how it has understood and acted as per the terms of the contract, are all crucial aid in comprehending the contractual scheme. (Para 61,62) A party cannot keep a 'jurisdictional ace' up their sleeve and then claim that filing of the jurisdictional challenge under 46 Section 16 would go back in time and wipe out the past conduct and acquiescence of the party which would clearly evince how the contractual terms were viewed by the parties. If the same is permitted, it will erode the basic principles of alternative dispute resolution and ethos of arbitration. (Para 67)

Arbitration and Conciliation Act 1996 - Section 34 - Courts cannot substitute the commercial wisdom of parties as is borne out from the plain meaning of the words used in the contract. The approach of the Court must be to respect arbitral autonomy and ensure minimum judicial interference. The scope of interference permissible in proceedings arising out of a challenge to the arbitral award under Section 34 is quite narrow. The arbitrator is the master of evidence and so also of interpretation of the terms of contract. If the arbitrator has reached at a certain view with respect to interpretation which is plausible, interference is not warranted merely because some other view may also be possible. (Para 36)

 [Download PDF: Municipal Corporation of Greater Mumbai v. R.V. Anderson Associates Limited 2026 INSC 228 - S.16](#) [- Statutory Waiver - Conduct Of Parties](#)

15. State of West Bengal v. M/S B.B.M. Enterprises 2026 INSC 358 - Arbitration Act - Limitation - Recovery Of Amount

6 May 2026

Arbitration and Conciliation Act, 1996 - Sections 21,42,43 ; Limitation Act 1961 - Article 18 - Arbitration though an alternate dispute resolution system, cannot deviate from the fundamental principle that law favours the diligent and not the indolent. Section 42 applies the Limitation Act to arbitrations as it is applied to proceedings in Court. Hence, for recovery of amounts, the limitation is three years as provided in Article 18 of the Limitation Act. The commencement of arbitration proceedings as per sub-section (2) of Section 43 is the date referred in Section 21, which is the date on which a request for initiation of arbitration is received by the respondent. (Para 6)

 [Download PDF: State of West Bengal v. M:S B.B.M. Enterprises 2026 INSC 358 -](#) [Arbitration Act - Limitation - Recovery Of Amounts](#)

16. Bhartia Infra Projects Limited vs Vishwa Samudra Engineering Private Limited - Arbitration Act - Twin Seat/Venue Clause - Court Jurisdiction

17 Jun 2026

Arbitration and Conciliation Act, 1996 — Section 11(6) – Jurisdiction of Court for appointment of arbitrator – twin seat/venue clause and exclusive jurisdiction of courts at one place – The arbitration clause provides that “the Seat and Venue of the arbitration shall be Hyderabad, Telangana state or Guwahati, Assam state” but, in the same clause, further stipulates that “courts in Hyderabad shall have exclusive jurisdiction over matters relating to or arising from this agreement”- **Held:** If two or more possible places are designated as seat, the principles of forum non conveniens would apply. But this principle is inapplicable in the facts where the parties have themselves agreed to the exclusive jurisdiction of the Courts in Hyderabad in the arbitration clause itself. Party autonomy is of primary importance in interpretation of the arbitration agreement. (Para 4) [**Context:** The Supreme Court dismissed the special leave petitions challenging the Telangana High Court’s order appointing an arbitrator in this case]

 [Download PDF: Bhartia Infra Projects Limited vs Vishwa Samudra Engineering Private Limited - Arbitration Act - Twin Seat:Venue Clause - Court Jurisdiction](#)

17. Jagdeep Chowgule v. Sheela Chowgule 2026 INSC 92 - S.29A Arbitration Act - Court Definition

29 Jan 2026

Arbitration and Conciliation Act, 1996 - Sections 2(1)(e), 11, 29A - If an arbitral tribunal - appointed by the High Court or by the parties concerned – does not complete proceedings within the required or extended time limit, can an application to extend time under Section 29A of the Act can be filed before the High Court or the Civil Court? The extension of mandate or substitution of an arbitrator under Section 29A does not partake the character of “appointment” under Section 11, but is a measure designed to ensure timely conclusion of arbitration -The expression “Court” in Section 29A must, therefore, be accorded the meaning assigned to it under Section 2(1)(e).(Para 23) The view that there will be hierarchical difficulties, conflict of power or jurisdictional anomaly if a Civil Court entertains application under Section 29A for extension of time of an arbitral tribunal if the High Court under Section 11(6) of the Act has appointed the arbitrator(s) is untenable. (Para 20)

Arbitration and Conciliation Act, 1996, particularly Sections 11 - The enquiry under Section 11 is confined to a prima facie determination of the existence of an arbitration agreement. The enquiry under Section 11 goes no further. (Para 14) Exercise of jurisdiction under Section 11 stands exhausted upon the constitution of the arbitral tribunal. There is no residual supervisory or controlling power left with the High Court or the Supreme Court over the arbitral proceedings after appointment is made. The referral Court becomes functus officio once appointment has been made, it has no role or function as a Subjudice Sentinel. (Para 15)

 [Download PDF: Jagdeep Chowgule v. Sheela Chowgule](#) [Arbitration Act - Court Definition](#)
[2026 INSC 92 - S.29A](#)

18. Tarini Prasad Mohanty v. Sunflag Iron and Steel Company Limited 2026 INSC 566 - Writ Jurisdiction - Arbitration Act

28 May 2026

Constitution of India, 1950 – Articles 226 and 227 ; Arbitration and Conciliation Act, 1996 – Sections 5, 16 and 34 - If the enactment besides providing for a statutory remedy [herein, Section 34] also expects minimal judicial interference prior to the culmination of the arbitral proceedings [herein, Section 5], the said factor would be of relevance while considering the exercise of jurisdiction. It would have to be demonstrated that notwithstanding the availability of an alternate remedy at the conclusion of the proceedings, such challenge cannot await the final adjudication of the proceedings and despite the statutory expectation of minimal interference, intervention in exercise of writ jurisdiction at an interim stage is imperative [**Context:** The Supreme Court held that where a party's objection under Section 16 is rejected by the arbitral tribunal, the party must ordinarily await the final award and challenge it under Section 34, and that the High Court should not, save in the rarest of exceptional cases, interfere mid- arbitration in writ jurisdiction under Articles 226/227]

Arbitration and Conciliation Act, 1996 - Non- stamping or inadequate stamping of an arbitration agreement is merely a curable defect. (Para 21)

 [Download PDF: Tarini Prasad Mohanty v. M:s Sunflag Iron and Steel Company Limited 2026 INSC 566 - Writ Jurisdiction -](#) [Arbitration Act](#)

19. Jan De Nul Dredging India Pvt. Ltd. v. Tuticorin Port Trust; 2026 INSC 34 - Ss.34,37 Arbitration Act

7 Jan 2026

Arbitration and Conciliation Act - Section 34,37- The scope of interference of the court with the arbitral matters is virtually prohibited, if not absolutely barred. The powers of the Appellate Court are even more restricted than the powers conferred by Section 34 of the Act. The appellate power under Section 37 of the Act is exercisable only to find out if the court exercising power under Section 34 of the Act, has acted within its limits as prescribed thereunder or has exceeded or failed to exercise the power so conferred. The Appellate Court exercising powers under Section 37 of the Act has no authority of law to consider the matter in dispute before the Arbitral Tribunal on merits so as to hold as to whether the award of the Arbitral Tribunal is right or wrong. The Appellate Court in exercise of such power cannot sit as an ordinary court of appeal and reappraise the evidence to record a contrary finding. The award of the Arbitral Tribunal cannot be touched by the court unless it is contrary to the substantive provision of law or any provision of the Act or the terms of the agreement. (Para 37)

Arbitration - The Act is a special enactment which aims to resolve contractual/commercial disputes through arbitration with the minimum intervention of the court, if not without the intervention of the court. In the event, the courts are allowed to step in at every stage and the arbitral awards are subjected to challenge before the courts in hierarchy before court of first instance, through regular appeals and finally by means of SLP/Civil Appeal before the Supreme Court, it would obviate/frustrate and defeat the very purpose of the Act. It is therefore, necessary to accept the arbitral award if it is not patently illegal or does not fall within the scope of intervention under Section 34 of the Act. The appeal thereof has a much narrower scope of intervention particularly when the arbitral award has been upheld under Section 34 of the Act. The appellate jurisdiction acquires little significance only when the arbitral award has been erroneously upheld or set aside by the court in exercise of its power under Section 34 of the Act. (Para 51)

 [Download PDF: Jan De Nul Dredging India Pvt. Ltd. v. Tuticorin Port Trust; 2026 INSC 34 - Ss.34,37](#) [Arbitration Act](#)

20. T.K.A. Padmanabhan vs Abhiyan Cooperative Group Housing Society Ltd. 2026 INSC 649 - Consumer Protection - Arbitration Clause - Delayed Possession

19 Jun 2026

Consumer Protection Act 1986 - Section 3,12(4)- An arbitration clause does not, by itself, oust the jurisdiction of the consumer forum - Once the complaint is admitted, the consumer cannot be driven out of that forum merely because the agreement between the parties contains an arbitration clause. A private contractual clause cannot be permitted to defeat the continued operation of a statutory remedy which is expressly made additional to other remedies under Section 3. (Para 16-22) [**Context:** In this case, Consumer Forum had allowed the respondent's application under Section 8 of the Arbitration and Conciliation Act, 1996]

 [Download PDF: T.K.A. Padmanabhan vs Abhiyan Cooperative Group Housing Society Ltd. 2026 INSC 649 - Arbitration Clause - Delayed Possession - Consumer Protection -](#)

21. Saisudhir Energy Ltd. v. NTPC Vidyut Vyapar Nigam Ltd., 2026 INSC 103 - Arbitration - Contract - Public Utility Projects

30 Jan 2026

Arbitration and Conciliation Act 1996 - Section 34,37 - The Court under Section 37 must only determine whether the Section 34 Court had exercised its jurisdiction properly and rightly, without

exceeding its scope - taking a different view of the same matter from the one taken under Section 34 would be beyond the scope of Section 37. (Para 18)

Arbitration and Conciliation Act 1996 - Section 34 -Power of the Section 34 Court to modify an award to a limited extent is recognized - The modification of the award so as to enhance the amount of reasonable compensation by the Section 34 Court was a permissible exercise. (Para 14-15)

 [Download PDF: Saisudhir Energy Ltd. v. NTPC Vidyut Vyapar Nigam Ltd., 2026 INSC 103 -](#) [Arbitration](#) - [Contract - Public Utility Projects](#)

22. J. Muthurajan v. S. Vaikundarajan 2026 INSC 139 - S.61 Arbitration Act

10 Feb 2026

Arbitration and Conciliation Act, 1996 - Section 61 - Any conciliation between two parties brought about by following the procedure in Part III of the Act of 1996 would definitely get the status and effect of an Award under the Act of 1996 unless the parties have agreed otherwise; which agreement should be expressly for the exclusion of Part III of the Act of 1996, despite a conciliation having been proceeded with and concluded. (Para 25)

Arbitration and Conciliation Act, 1996 - Section 34 - The challenge to the Award under Section 34 would be available if it can be termed 'an Award' under the Act. (Para 26)

 [Download PDF: J. Muthurajan v. S. Vaikundarajan - S.61](#) [Arbitration](#) [Act](#)

23. Viva Highways Ltd v. Madhya Pradesh Road Development Corporation Ltd - S.29A Arbitration Act

10 Feb 2026

Arbitration and Conciliation Act 1996 - Section 29A - The decision in [Mohan Lal Fatehpuria vs Bharat Textiles](#) does not mandate the substitution of an Arbitrator as an inevitable consequence, when the Court is considering the extension of mandate that has already expired - Section 11 of the Arbitration Act will have no bearing on the working of the provisions of Chapter 5 and 6, wherein Section 29A is located.

 [Download PDF: Viva Highways Ltd v. Madhya Pradesh Road Development Corporation Ltd - S.29A](#) [Arbitration](#) [Act](#)

24. MCM Worldwide Private Limited v. Construction Industry Development Council 2026 INSC 425 - Arbitration Act

28 Apr 2026

Arbitration and Conciliation Act 1996 - Section 16,34 - Whether an application under Section 34 be filed against the Arbitrator's order under Section 16(2), rejecting the plea that she lacked jurisdiction to continue with the arbitral proceedings? SC held: Not maintainable. Accepting such a construction would do violence to the very scheme of the Arbitration Act and render Section 37(2) thereof superfluous, as it is only an order accepting the plea of lack of jurisdiction under Section 16(2) or (3) that is amenable to appeal directly, without going through the process under Section 34 thereof. (Para 16-17)

 [Download PDF: MCM Worldwide Private Limited v. Construction Industry Development Council 2026 INSC 425 - Arbitration Act](#)

25. Elecon Engineering Company Limited v. Bhartiya Rail Bijlee Company Limited 2026 INSC 458 - S.11 Arbitration Act - Veritable Party

7 May 2026

Arbitration and Conciliation Act, 1996 - Section 11 - In this case, Elecon Engineering, the *Collaborator*, was an inextricable and “veritable” party to the main contract between the Employer and the Contractor because the bid conditions required a Deed of Joint Undertaking (DJU) with joint and several liability, and the Collaborator was repeatedly called upon to perform after the Contractor went into liquidation. SC held: Elecon, though not a signatory to the main contract's arbitration clause, could invoke that clause against the Employer, and rejected the Employer's plea of lack of privity. Setting aside the High Court's refusal under Section 11(6), the Court allowed the Section 11 petition and appointed Justice (Retd.) Chakradhari Sharan Singh as the sole arbitrator.

 [Download PDF: Elecon Engineering Company Limited v. Bhartiya Rail Bijlee Company Limited 2026 INSC 458 - S.11 Arbitration Act - Veritable Party](#)

26. Ashok and Ors. v. Padam Chand 2026 INSC 591 - Order 41 Rule 22 CPC - Arbitration Act 1940

29 May 2026

Arbitration Act, 1940 - Section 21, 47 -An arbitral award made during the pendency of a civil suit concerning the same property, without a court order of reference under Section 21 of the Arbitration

Act, 1940, is **legally ineffective as a bar** to that suit. [**Context:** In this case, SC held: Since the award had been “otherwise obtained” and the plaintiffs never gave post-award consent, it could not be treated as a compromise under the proviso to Section 47, and the High Court erred in treating it as final. Removing the award from consideration, and relying on unchallenged findings that the plaintiffs had purchased the suit property in a court auction and obtained symbolic possession, the Court decreed the 1982 suit for possession, directed an enquiry into mesne profits, and held a subsequent sale deed (made subject to the suit’s outcome) not binding on the plaintiffs.]

 [Download PDF: Ashok and Ors. v. Padam Chand 2026 INSC 591 - Order 41 Rule 22 CPC -](#) [Arbitration Act 1940](#)

27. Viva Highways Ltd v. Madhya Pradesh Road Development Corporation Ltd - S.29A Arbitration Act

19 Jan 2026

Arbitration and Conciliation Act 1996 - Section 29A - Clarified [Mohan Lal Fatehpuria v. Bharat Textiles 2025 INSC 1409](#): The intention of the Court was not to rewrite the provisions of Sections 29A(4), 29A(5) and 29A(6) of the Act and compel substitution of the arbitrator in every case of extension of the arbitrator’s mandate.

 [Download PDF: Viva Highways Ltd v. Madhya Pradesh Road Development Corporation Ltd - S.29A](#) [Arbitration Act](#)

28. Prakash Atlanta (JV) v. NHAI; 2026 INSC 76 - S.34 Arbitration Act - BOCW Act- Cess Act

20 Jan 2026

Arbitration and Conciliation Act, 1996 - Section 34 - If an arbitral tribunal’s view is found to be a possible and plausible one, it cannot be substituted merely because an alternate view is possible. Construction and interpretation of a contract and its terms is a matter for the arbitral tribunal to determine. Unless the same is found to be one that no fair-minded or reasonable person would arrive at, it cannot be interfered with. If there are two plausible interpretations of the terms of a contract, then no fault can be found if the arbitrator accepts one such interpretation as against the other. To be in conflict with the public policy of India, the award must contravene the fundamental policy of Indian law, which makes it narrower in its application. (Para 59)

 [Download PDF: Prakash Atlanta \(JV\) v. NHAI; 2026 INSC 76 - S.34](#) [Arbitration Act - BOCW Act- Cess Act](#)

29. C. Velusamy v. K. Indhera 2026 INSC 112 - S.29A Arbitration Act - Expiry Of Time

3 Feb 2026

Arbitration and Conciliation Act, 1996— Section 29A: An application under Section 29A(5) for extension of the mandate of the arbitrator is maintainable even after the expiry of the time under Sections 29A(1) and (3) and even after rendering of an award during that time. Such an award is ineffective and unenforceable. But the power of the court to consider extension is not impaired by such an indiscretion of the arbitrator. While considering the application, the Court will examine if there is sufficient cause for extending the mandate, and in the process, it may impose such terms and conditions as the situation demands. The Court will also take into account other factors such as reduction of the fee of the arbitrator under proviso to Section 29A(4) and also impose costs on parties if the fact situation so demands. Substitution is an option for the Court as the provision itself says, “it shall be open for the Court to substitute”, and it will be exercised carefully. If the mandate is extended, the arbitral tribunal will pick up the thread from where it was left, and seamlessly continue the proceeding from the stage at which the mandate had expired, and conclude within the time granted. (Para 23)

 [Download PDF: C. Velusamy v. K. Indhera 2026 INSC 112 - S.29A Arbitration Act - Expiry Of Time](#)

30. Eminent Colonizers Private Limited v. Rajasthan Housing Board 2026 INSC 116 -Arbitration - Precedent & Res Judicata

4 Feb 2026

Arbitration and Conciliation Act 1996 (pre 2015 amendment position) - Section 11,34,37 - Not only will the parties be bound before the Arbitrator with regard to the finding on existence and validity of the arbitration agreement they will also be bound during the subsequent stages of the proceedings which will include the Section 34 application stage, the Section 37 appeal stage and before this Court. (Para 31)

 [Download PDF: MS Eminent Colonizers Private Limited vs Rajasthan Housing Board](#)

31. RCM Infrastructure Limited v. The State Highway Authority of Jharkhand - Arbitration Act - Enforcement Of Award - S.34 Proceedings Pending

14 Feb 2026

Arbitration and Conciliation Act 1996 -Section 34-36 - In this case, the award in favour of the petitioner was passed on 10.06.2019 - SC observed: More than six and a half years have passed since the

petitioner had started objecting to the maintainability of the Section 34 petition without pre deposit. It is high time, the petitioner seeks execution of the award. (i) An arbitral award shall be final and binding on the parties and the persons claiming under them respectively. [Section 35] (ii) Immediately after the time for making an application to set aside the award expires, the arbitral award can be enforced like that of a Civil Court decree. [Section 36(1)] (iii) The award will continue to be enforceable as a decree, even when an application to set aside the arbitral award has been filed and pending. [Section 36(2)] (iv) Enforceability of the award is subject to an orders of stay, passed by a Court on an application made for that purpose. [Section 36(2)] (v) The power of the Court to stay the operation of an award extends to imposing such conditions as it may deem fit and as per the reasons supplied in the order. [Section 36(2) and (3)] (vi) The principles governing stay of a money decree shall apply as Court considers an application for stay of an arbitral award. [Section 36(3)] (Para 2-3)

 [Download PDF: RCM Infrastructure Limited v. The State Highway Authority of Jharkhand - Arbitration Act - Enforcement Of Award - S.34 Proceedings Pending](#)

32. Union of India & Ors. v. Larsen & Toubro Limited (L&T) 2026 INSC 203 - S.31 Arbitration Act - Post/Pre Award Interest

27 Feb 2026

Arbitration and Conciliation Act, 1996 - Section 31 - With regard to the post-award interest, Section 31(7)(b) of the Act provides that unless the award otherwise directs, the sum awarded shall carry interest from the date of the award till payment. The legislative intent underlying this provision is twofold: first, to compensate the successful party for delayed realization of the award, and second, to ensure prompt compliance with the award by the judgment-debtor- post-award interest flows as a matter of law under Section 31(7)(b), unless the parties have unequivocally agreed to exclude it. Pre-award and post-award interest operate in distinct fields and a contractual bar applicable to the former cannot, by implication, be extended to the latter, and thus, any exclusion of post-award interest must be explicit and unambiguous. (Para 47-57)

 [Download PDF: Union of India & Ors. v. Larsen & Toubro Limited \(L&T\), 2026 INSC 203 - S.31 Arbitration Act - Post:Pre Award Interest](#)

33. National Highway Authority of India v. T. Younis 2026 INSC 616 -Ss.34(3), 33 Arbitration Act - Computation Of Limitation

2 Jun 2026

Arbitration and Conciliation Act, 1996 – Sections 33 and 34(3) —For the purposes of computation of limitation under Section 34(3) of the Act, it is the date of disposal of the application under Section 33 of the Act that would earmark the starting point of limitation for filing an application

under Section 34 of the Act. Once jurisdiction under Section 33 is formally invoked and such proceedings are entertained by the Arbitral Tribunal, the limitation for filing an application under Section 34 would commence only from the date on which such request is disposed of by the Arbitral Tribunal. (Para 18) Whether the application under Section 33 ultimately succeeds or fails, or whether the Arbitral Tribunal eventually finds that no correction or modification of the award is warranted, is not determinative for the purpose of Section 34(3). What is relevant is that whether the jurisdiction of the Arbitral Tribunal under Section 33 had been formally invoked and that such proceedings remained pending consideration before the tribunal. (Para 15)

 [Download PDF: National Highway Authority of India v. T. Younis](#) [2026 INSC 616 -Ss.34\(3\), 33](#) [Arbitration Act - Computation Of Limitation](#)

34. Riar Builders Pvt Ltd v. Union of India -National Highways Act - Compensation Of Land Owners

19 Jan 2026

National Highways Act, 1956 - The remedy provided to an expropriated land owner/interested party, if such person is aggrieved by the rate of compensation determined by the competent Authority, is to invoke arbitration under Section 3G(5) read with provisions of the Arbitration and Conciliation Act - Land owners, whose land is acquired under the 1956 Act, vis-à-vis the land owners whose lands are acquired now under the New Act, have been treated as separate classes, apparently without any intelligible differentia- While there seems to be a lot of legislative wisdom discernible from the mechanism encapsulated under the 1956 Act, to the effect that the acquisition under this Act must take place in a time-bound and expeditious manner so that the development of National Highways is not hampered or delayed. Though such a legislative policy is laudable, prima facie, it seems that this object can be kept intact while ensuring the land owners that they will be entitled to assessment of compensation for the acquired land in the same manner as is determined for the land owners whose lands are acquired under the Old Act or under the New Act, even when such acquisition is also for infrastructural development - **Suggestion:** Union of India should revisit the legislative scheme and consider the desirability of bringing parity in the matter of providing a mechanism for the determination of the market value of acquired land with reference to Article 300-A of the Constitution of India. (Para 5-11)

 [Download PDF: Riar Builders Pvt Ltd v. Union of India -National Highways Act - Compensation Of Land Owners](#)

35. Power Trust v. Bhuvan Madan 2026 INSC 166 -IBC - Financial Creditor - CIRP

18 Feb 2026

Insolvency and Bankruptcy Code, 2016 - Section 7-9 - Initiation of CIRP by financial creditor under Section 7, IBC and an operational creditor under Section 8 and 9 - Distinction- Unlike an operational creditor, a financial creditor may trigger an insolvency process under Section 7 in respect of default of any financial debt, whether owed to itself or to any other financial creditor. While the financial creditor may directly file an application under Section 7 setting out the particulars of the financial debt and evidence of default, the operational creditor, on the occurrence of a default, is to first deliver a demand notice of the unpaid debt to a corporate debtor and the latter may within 10 days of receipt of such demand notice bring to the notice of the operational creditor the existence of a dispute or record the pendency of a pre-existing suit or arbitration proceeding in respect of such debt. Once a corporate debtor demonstrates a dispute regarding the existence of the debt, the insolvency process stands aborted vis-à-vis the operational creditor. But when the financial creditor initiates the insolvency process for the purposes of admission, the Adjudicating Authority is only to ascertain the existence of a default from the records of the information utility or the evidence furnished by the financial creditor within fourteen days from the receipt of such application. At this stage, neither is a corporate debtor entitled nor is the Adjudicating Authority required to examine any dispute regarding the existence of such debt. This significantly reduces the scope of enquiry at the stage of a time-bound admission of an insolvency process by a financial creditor. In the case of a corporate debtor who commits a default of a financial debt, the adjudicating authority has merely to see the records of the information utility or other evidence produced by the financial creditor to satisfy itself that a default has occurred. It is of no matter that the debt is disputed so long as the debt is “due” i.e. payable unless interdicted by some law or has not yet become due in the sense that it is payable at some future date. It is only when this is proved to the satisfaction of the adjudicating authority that the adjudicating authority may reject an application and not otherwise.(Para 32)

 [Download PDF: Power Trust v. Bhuvan Madan 2026 INSC 166 -IBC - Financial Creditor - CIRP](#)

36. GLS Films Industries Private Limited v. Chemical Suppliers India Private Limited, 2026 INSC 344 - S.9 IBC

10 Apr 2026

Insolvency and Bankruptcy Code, 2016 - Section 9 - When examining an application under Section 9, the adjudicating authority has to examine (i) whether there was an operational debt exceeding ₹1 lakh (after 24th March, 2020, ₹1 crore); (ii) whether the evidence furnished with the application showed that the debt was due and payable and had not till then been paid; and (iii) whether there was in existence any dispute between the parties or the record of pendency of a suit or arbitration proceedings filed before the receipt of demand notice in relation to such dispute and in the event, any of the aforesaid conditions was not fulfilled, the application of the operational creditor would have to be rejected -All that is required is for the adjudicating authority to satisfy itself as to the existence of a

plausible pre-existing dispute, which was not spurious, hypothetical or illusory. Whether the party raising that dispute would succeed on the strength thereof is not within the ken of such inquiry. (Para 19-21)

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